

24STCV20669 24STCV20669

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Case Number: 24STCV20669 Hearing Date: September 24, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

LAKE LINDERO HOMEOWNERS ASSOCIATION,

Plaintiff,

vs.

WOLK & LEVINE, L.L.P., et al.,

Defendants.

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CASE NO.: 24STCV20669

[TENTATIVE] ORDER OVERRULING DEMURRERS

Dept. 506

8:30 a.m.

September 24, 2026

On August 15, 2024,
Plaintiff Lake Lindero Homeowners Association filed this legal malpractice
action, and on April 2, 2025, it filed a first amended complaint ("FAC").

On
May 16, 2025, Defendants Patrick Kevin O'Brien and O'Brien Law P.C.
(collectively, "O'Brien") filed a demurrer.

On
August 25, 2025, Defendants Myers, Widders, Gibson, Jones & Feingold, LLP ("MWGJF")
and Jill Lisa Friedman filed a demurrer.

LEGAL STANDARD

A
demurrer for sufficiency tests whether the complaint states a cause of
action. (Hahn v. Mirza (2007) 147
Cal.App.4th 740, 747.) When considering
demurrers, courts read the allegations liberally and in context, accepting the
alleged facts as true. (Nolte v.

Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) "Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice." (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

DEMURRER
OF O'BRIEN

Defendants'
request for judicial notice is granted.
(See Day v. Sharp (1975) 50 Cal.App.3d 904, 914 ["A court may take judicial notice of the existence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments."].)

Defendants
argue that Plaintiff's claims are barred by its own unclean hands. Defendants cite the Final Statement of Decision in the underlying action, where "the underlying court in fact reprimands Plaintiff itself at great length for its 'improper pre-trial behavior,' 'wrongful conduct,' 'violation of privacy rights,' and 'unlawful acts' throughout the underlying action."
(Demurrer at p. 9; see RJN, Ex. C.)
There is a general rule that application of the doctrine of unclean hands is a question of fact. (CrossTalk Productions, Inc. v. Jacobson (1998) 65 Cal.App.4th 631, 639.) The Court cannot conclude at the pleading stage that it was solely Plaintiff's conduct that led to its damages.

Defendants
also argue that Plaintiff's claims are time-barred. To sustain a demurrer on the statute of limitations, the running of the statute must appear clearly and affirmatively on the face of the complaint. (Geneva Towers Ltd. Partnership v. City of San Francisco (2003) 29 Cal.4th 769, 781.) "[I]t is not enough that the complaint might be time-barred. [Citation.]" (Ibid.) An action against an attorney for a wrongful act or omission arising from professional services must be brought within the earlier of (1) one year after the plaintiff discovers (or through the use of reasonable diligence should have discovered) the fact constituting the wrongful act or omission, or (2) four years after the date of the wrongful act or

omission. (Code Civ. Proc., § 340.6, subd. (a).) The time shall not exceed four years, but it is tolled when the plaintiff has not sustained actual injury. (Ibid.) “The test for actual injury under section 340.6 . . . is whether the plaintiff has sustained any damages compensable in an action, other than one for actual fraud, against an attorney for a wrongful act or omission arising in the performance of professional services.” (Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison (1998) 18 Cal.4th 739, 751.)

Defendants

argue that Plaintiff knew of its injury more than one year before filing the FAC on April 2, 2025, making it time barred.

(Demurrer at p. 12.) But the

correct timeline is based on the filing date of the original Complaint (which also named the O'Brien Defendants).

Thus, the calculation must be based on the August 15, 2024 filing. Defendants unwittingly undermine their own argument and demonstrate why this action is timely: “Undoubtedly, Plaintiff knew on August 18, 2023, of the alleged wrongful acts or omissions of Defendants and certainly should have undertaken an investigation at that time, particularly with new counsel, to discover any additional facts giving rise to Plaintiff’s claims against Defendants.” (Demurrer at p.

13.) Additionally, “[b]y August 18,

2023, when the underlying court issued its Statement of Decision, Plaintiff had already expended some certain sum of legal fees and costs; and was then subject to various sanctions and negative results in litigation,” constituting actual injury. (Id. at p. 14.) Plaintiff timely filed this action on August 15, 2024, less than one year after Plaintiff’s August 18, 2023 knowledge of its injury.

The

demurrer is OVERRULED.

Defendants

are ordered to file their answers within 10 days.

DEMURRER

OF MWGJF AND JILL LISA FRIEDMAN

Defendants’

request for judicial notice is granted. (See

Day v. Sharp (1975) 50 Cal.App.3d 904, 914 [“A court may take judicial notice of the existence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.”].)

Defendants

argue that the underlying legal malpractice was caused by the prior counsel's conduct that led to terminating sanctions.

Defendants cite the Final Statement of Decision in the underlying action, which stated that the prior counsel delivered “a ‘nuclear blow’ to the attorney-client privilege and fatally taints this case.” (RJN, Ex. B at p. 15; Demurrer at p. 4.) According to Defendants, “[t]he clearly

unlawful conduct all happened before Myers became involved and Myers had no opportunity to counsel LLHOA to refrain from engaging in the offensive conduct that had already occurred.” (Demurrer at p. 7.)

Yet,

the same Final Statement of Decision also states, “MWGJF tries to isolate itself from the wrongdoings of prior counsel for LLHOA. It cannot.”

(RJN, Ex. B at p. 94.) Thus, on

the face of the FAC and judicially noticeable documents, it is not clear that “[t]here is no way to cure the issue of LLHOA's unclean hands as a defense in a further amended pleading.” (See Demurrer at p. 8.)

The

demurrer is OVERRULED.

Defendants

are ordered to file their answers within 10 days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 24th day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court